



Bill Number: S.B. 1544

Shamp Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires an adult probation department, notwithstanding any other law, to disclose a person's probation records, including records related to treatment and evaluation, to a person who is on probation at the request of the probationer or the probationer's attorney or authorized representative.
2. Modifies the definition of *probation records* to include risk assessment results, rather than risk assessment tools and criteria.
3. Makes conforming changes.

SHAMP FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1544
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 9, Arizona Revised Statutes, is
3 amended by adding section 13-922, to read:

4 13-922. Probation records; public records; exemptions;
5 definition

6 A. NOTWITHSTANDING ANY OTHER LAW, LAWS THAT GOVERN ACCESS TO
7 RECORDS OF THE JUDICIAL BRANCH DO NOT APPLY TO ADULT PROBATION
8 DEPARTMENTS, ADULT PROBATION OFFICERS OR COMMUNITY SUPERVISION UNITS.

9 B. NOTWITHSTANDING ANY OTHER LAW, ALL PROBATION RECORDS ARE PUBLIC
10 RECORDS SUBJECT TO TITLE 39, CHAPTER 1 AND MUST BE DISCLOSED ON REQUEST
11 UNLESS SPECIFICALLY EXEMPT UNDER THIS SECTION.

12 C. PROBATION RECORDS MUST BE REDACTED TO PROTECT ALL INFORMATION
13 LISTED IN THIS SUBSECTION. IF PROTECTION IS NOT POSSIBLE THROUGH THE
14 REDACTION, THE PROBATION RECORDS MUST BE WITHHELD TO PROTECT THE
15 FOLLOWING:

16 1. VICTIM INFORMATION, INCLUDING THE VICTIM'S NAME, ADDRESS,
17 TELEPHONE NUMBER AND PERSONAL IDENTIFYING INFORMATION.

18 2. IDENTIFYING INFORMATION OF MINORS.

19 3. MEDICAL, PSYCHOLOGICAL OR COUNSELING RECORDS.

20 4. ACTIVE CRIMINAL INVESTIGATIONS.

21 5. THE IDENTITY OF A CONFIDENTIAL INFORMANT.

22 D. IF A PROBATION RECORD IS WITHHELD PURSUANT TO SUBSECTION C OF
23 THIS SECTION, THE PROBATION DEPARTMENT MUST DO ALL OF THE FOLLOWING:

24 1. PROVIDE A WRITTEN EXPLANATION WITHIN TEN BUSINESS DAYS.

25 2. CITE THE STATUTE THAT JUSTIFIES THE NONDISCLOSURE.

26 3. INFORM THE REQUESTER OF THE RIGHT TO APPEAL.

27 E. A PERSON MAY APPEAL THE WITHHOLDING OF A PROBATION RECORD TO THE
28 COURT. THE COURT SHALL SET A HEARING ON AN ACTION UNDER THIS SECTION
29 WITHIN TWENTY BUSINESS DAYS AFTER THE REQUEST IS FILED.

1 F. A COURT MAY IMPOSE CIVIL PENALTIES FOR A VIOLATION OF THIS
2 SECTION AND MAY AWARD ATTORNEY FEES.

3 [G. NOTWITHSTANDING ANY OTHER LAW, THE ADULT PROBATION DEPARTMENT
4 SHALL DISCLOSE A PERSON'S PROBATION RECORDS, INCLUDING RECORDS RELATED TO
5 TREATMENT AND EVALUATION, TO A PERSON WHO IS ON PROBATION ON THE REQUEST
6 OF THE PROBATIONER OR THE PROBATIONER'S ATTORNEY OR AUTHORIZED
7 REPRESENTATIVE.]

8 [G.] [H.] FOR THE PURPOSES OF THIS SECTION, "PROBATION RECORDS"
9 INCLUDE:

- 10 1. PROBATION VIOLATION REPORTS AND HISTORIES.
- 11 2. INTERNAL DIRECTIVES, POLICY MANUALS AND SUPERVISION PROTOCOLS.
- 12 3. RISK ASSESSMENT [TOOLS AND CRITERIA] [RESULTS].
- 13 4. CASE MANAGEMENT SUMMARIES.
- 14 5. AUDIT REPORTS, INSPECTION REPORTS AND PERFORMANCE REVIEWS.
- 15 6. COMMUNICATIONS BETWEEN PROBATION OFFICERS AND SUPERVISING
- 16 AGENCIES.
- 17 7. REVOCATION FILINGS AND OUTCOMES.
- 18 8. DATA ON HIGH-RISK CASES, ABSCONDERS, FAILURES TO APPEAR AND
- 19 INTERVENTIONS.

20 Enroll and engross to conform

21 Amend title to conform

JANAE SHAMP

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C: JV

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